

DEPARTMENT OF ECONOMICS AND MANAGEMENT
FIRST SEMESTER EXAMS, 2023/2024 ACADEMIC YEAR
SECOND YEAR ECONOMICS AND MANAGEMENT

LAW OF CONTRACT

ATTEMPT ALL QUESTIONS IN A CHRONOLOGICAL MANNER

YOU ARE REMINDED OF THE NECESSITY OF GOOD ENGLISH

TIME ALLOWED: TWO HOURS

1. Define the concept of consideration. (1mark)
2. Explain the distinction between executed and executory consideration, providing an example of each. (1mark)
3. Elucidate on the principle that consideration must be sufficient but needs not be adequate. (1mark)
4. Define frustration and explain any two circumstances under which a contract may be discharged by frustration. (2marks)
5. Discuss the law in relation to contract formation, paying particular attention to the law on offer, termination of an offer and acceptance. (2marks)
6. Discuss the remedy of an order for specific performance. (1mark)
7. State the difference between bilateral and unilateral contracts. (1mark)
8. What is the primary distinction between an offer and an invitation to treat? (1mark)
9. Give the names of four cases that demonstrate examples of invitation to treat. (1mark)
10. Will the courts enforce non-commercial agreements between family members? Provide an example of a case that shows this. (1mark)
11. List the main categories of persons that the law states do not have the capacity to enter into a contract? (1mark)
12. What types of contracts can minors legally sign? (1 mark)
13. Make a distinction between a mandatory and prohibited injunction. (1mark)
14. Discuss the rule in Pinnel's case and its exceptions at common law and equity. (5marks)

Good Luck!